

## Department of Public Works and Highways

Contract ID : 24AF0094  
Contract Name : SIPAG - Flood Mitigation Structures Protecting Major/Strategic Public Buildings/Facilities - Construction of Shore Protection Works, Barangay Urayong, Bauang, La Union  
Location of Contract : Brgy. Urayong, Bauang, La Union

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### CONTRACT AGREEMENT

THIS AGREEMENT, made this \_\_\_\_\_ day of APR 15 2024 between Department of Public Works and Highways, La Union Second District Engineering Office, San Joaquin Sur, Agoo, La Union (hereinafter called the "Entity") and ANORE Construction, J.M. Basa Street, Libid, Binangonan, Rizal (hereinafter called the "Contractor").

WHEREAS, the Entity is desirous that the Contractor execute SIPAG - Flood Mitigation Structures Protecting Major/Strategic Public Buildings/Facilities - Construction of Shore Protection Works, Barangay Urayong, Bauang, La Union with Contract ID 24AF0094 (hereinafter called "the Works") and the Entity has accepted the Bid for Ninety Six Million Four Hundred Ninety Three Thousand Eight Hundred Forty Three Pesos and Eight Centavos (Php 96,493,843.08) by the Contractor for the execution and completion of such works and the remedying of any defects therein.

#### NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

1. In this Agreement, words and expressions shall have the same meanings as are respectively assigned to them in the Conditions of Contract hereinafter referred to.
2. The following documents as required by the 2016 revised Implementing Rules and Regulations of Republic Act No. 9184 shall be deemed to form and be read and construed as part of this Agreement, viz;
  - a. Philippine Bidding Documents (PBDs);
    - i. Drawings/Plans;
    - ii. Specifications;
    - iii. Bill of Quantities;
    - iv. General and Special Conditions of the Contract;
    - v. Supplemental or Bid Bulletin, if any;
  - b. Winning bidder's bid, including the Eligibility requirements, Technical and Financial Proposals and all other documents or statements submitted;

Bid form, including all the documents/statements contained in the Bidder's bidding envelopes, as annexes, and all other documents submitted including corrections to the bid, resulting from the Procuring Entity's bid evaluation;
  - c. Performance Security;
  - d. Notice of Award of Contract and the Bidder's conforme thereto; and
  - e. Other contract documents that may be required by existing laws and/or the Procuring Entity concerned in the PBDs. Winning bidder agrees that additional contract documents or information prescribed by the GPPB that are subsequently required for submission after the contract execution, such as the Notice to Proceed, Variation Orders, and Warranty Security, shall likewise form part of the Contract.

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3. In consideration for the sum of Ninety Six Million Four Hundred Ninety Three Thousand Eight Hundred Forty Three Pesos and Eight Centavos (Php 96,493,843.08) or such other sums as may be ascertained, ANORE Construction agrees for the execution and completion of the works in accordance with his/her/its Bid.

### SPECIAL CONDITIONS OF THE CONTRACT

Contract Duration : 265 Calendar Days

| Item No.                                            | Description                                               | Quantity  | Unit  | Unit Cost    | Total Cost           |
|-----------------------------------------------------|-----------------------------------------------------------|-----------|-------|--------------|----------------------|
| <b>PART A FACILITIES FOR THE ENGINEER</b>           |                                                           |           |       |              |                      |
| A.1.1(8)                                            | Provision of Field Office for the Engineer (Rental Basis) | 8.83      | mo.   | 12,390.00    | 109,403.70           |
| <b>TOTAL OF PART A</b>                              |                                                           |           |       |              | <b>109,403.70</b>    |
| <b>PART B OTHER GENERAL REQUIREMENTS</b>            |                                                           |           |       |              |                      |
| B.5(1)                                              | Project Billboard/Signboard                               | 2.00      | each  | 8,494.00     | 16,988.00            |
| B.7(1)                                              | Occupational Safety and Health                            | 1.00      | l.s.  | 316,768.00   | 316,768.00           |
| B.9(1)                                              | Mobilization/ Demobilization                              | 1.00      | l.s.  | 133,686.00   | 133,686.00           |
| B.18(1)                                             | Craneway                                                  | 500.00    | l.m.  | 439.00       | 219,500.00           |
| <b>TOTAL OF PART B</b>                              |                                                           |           |       |              | <b>686,942.00</b>    |
| <b>PART L-A EARTHWORKS</b>                          |                                                           |           |       |              |                      |
| 1702(1)a                                            | Structure Excavation (Common Soil)                        | 1,643.05  | cu.m. | 327.00       | 537,277.35           |
| <b>TOTAL OF PART L-A</b>                            |                                                           |           |       |              | <b>537,277.35</b>    |
| <b>PART L-B DRAINAGE AND SLOPE PROTECTION WORKS</b> |                                                           |           |       |              |                      |
| 715(2)                                              | Separation Geotextile                                     | 11,314.50 | sq.m. | 1,158.00     | 13,102,191.00        |
| 715(3)                                              | Drainage Geotextile                                       | 7,560.00  | sq.m. | 1,795.00     | 13,570,200.00        |
| 715(8)                                              | Geotextile Bag                                            | 36.00     | pcs.  | 1,362,432.00 | 49,047,552.00        |
| <b>TOTAL OF PART L-B</b>                            |                                                           |           |       |              | <b>75,719,943.00</b> |
| <b>PART J DRAINAGE AND SLOPE PROTECTION WORKS</b>   |                                                           |           |       |              |                      |
| 1501(1)a                                            | Rock Works, Class I Rock                                  | 8,496.21  | tonne | 1,280.00     | 10,875,148.80        |
| 1501(1)b                                            | Rock Works, Class II Rock                                 | 2,412.81  | tonne | 573.00       | 1,382,540.13         |
| 1501(1)c                                            | Rock Works, Class III Rock                                | 14,809.46 | tonne | 485.00       | 7,182,588.10         |
| <b>TOTAL OF PART J</b>                              |                                                           |           |       |              | <b>19,440,277.03</b> |
| <b>GRAND TOTAL</b>                                  |                                                           |           |       |              | <b>96,493,843.08</b> |

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4. The DPWH-La Union Second District Engineering Office agrees to pay the above-mentioned sum in accordance with the terms of the Bidding.

IN WITNESS WHEREOF, the parties hereto set their respective hands on the day, month and year first above written.

**PROCURING ENTITY:**

Represented by:

  
**GIL B. LORENZO**  
District Engineer

**Witnessed by:**

  
**MARIO L. LAROYA**  
Chief, Construction Section

**CONTRACTOR:**

Represented by:

  
**GLENN C. ANORE**  
Manager

Subject to the provisions of Executive Order  
No. 91, s. 2019

  
**DAN G. GINETE**  
Chief, Finance Section

Department of Public Works and Highways

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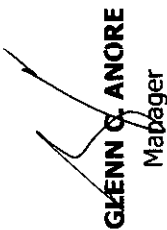
Witnesses

Party of the Second Part  
ANORE Construction

Republic of the Philippines  
Department of Public Works and  
Highways  
DPWH-LUSDEO  
By:

  
DARING GINETETE  
Chief, Finance Section

  
MARIO L. LAROYA  
Chief, Construction Section

  
GLENN C. ANORE  
Manager

  
GIL B. LORENZO  
District Engineer

Republic of the Philippines  
Municipality of \_\_\_\_\_  
Province of \_\_\_\_\_

ACKNOWLEDGEMENT

BEFORE ME, Notary Public and in the Province of La Union personally appeared GIL B. LORENZO with DPWH Employee No. 92C0005 in his capacity as District Engineer of the Department of Public Works and Highways, La Union Second District Engineering Office, San Joaquin Sur, Agoo, La Union, representing Republic of the Philippines and GLENN C. ANORE with Residence Certificate No. 27281980 issued on 1/3/24 at Panangonan Rizal representing party of the Second Part, known to be the same persons who executed the foregoing CONTRACT AGREEMENT and they acknowledge to me that the same is their true acts and deeds in behalf of the Parties they represent.

This instrument consists of Three (3) pages , including this page of which the ACKNOWLEDGEMENT is written, duly signed by the Contracting Parties and their witnesses at the left margin of all pages above their typewritten names.

IN WITNESS WHEREOF, I have hereunto affixed my signature and seal of Office this APR 15 2024 at Agoo, La Union.

  
LEONARD FLORENT O. BULATAO  
NOTARY PUBLIC  
UNTIL DECEMBER 31, 2025  
PTR No. 8842511/01-02-24  
JFELIMEBP No. 797228/12/27/0,  
ROL No. 51854/5/10/06  
PTR No. \_\_\_\_\_  
Issued \_\_\_\_\_  
Issued on \_\_\_\_\_

Doc. No.: 47  
Page: 10  
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Series of : WM